

Naveen Mangla & Ors vs State Of Delhi & Anr on 4 July, 2022

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IN THE HIGH COURT OF DELHI AT NEW DELHI

CRL.M.C. 2916/2022

NAVEEN MANGLA & ORS.

..... Petitioners

Through: Mr Harish Kumar, Advocate

versus

STATE OF DELHI & ANR.

.....

Through:

Mr K.K Ghei, APP for St

w/SI Santosh PS Vijay V

CORAM:

HON'BLE MS. JUSTICE POONAM A. BAMBA

ORDER

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04.07.2022

1.0 This is a petition for quashing of FIR No.0039/2020 dat

under Sections 498A/406/34 Indian Penal Code, 1860, PS Vijay Vihar, Delhi and all consequential proceedings, arising out of the aforesaid FIR. 2.0 All the petitioners except petitioner no. 5 Pinki Mangla, sister in law of respondent no. 2 are present in person. Respondent no. 2 is also present in person.

3.0 It is submitted that the petitioner no. 5 is in advance stage of pregnancy and has been advised complete bed rest and therefore, is not able to appear personally. A copy of medical certificate in support is handed over. Same be scanned and taken on record.

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4.0 All the petitioners as present and respondent no. 2 the IO who is present in court.

5.0 It is submitted that the petitioners as well as respo

resolved all their differences and have arrived at a settlement outside the court.

5.1 Copy of Memorandum of Understanding (in short MoU)/Settlement Deed has been placed on record as Annexure D. 5.2 It is submitted that as per MoU, it has been agreed that the petitioner no.

1 shall pay a total amount of Rs. 11,40,000/- to the respondent no. 2 towards settlement of all her dues, towards permanent alimony including maintenance (past, present and future) and also including value of remaining dowry articles, streedhan etc. 5.3 It is also submitted that the petitioner no. 1 has already paid a sum of Rs. 7,90,000/- at the time of recording of statement of the parties in First Motion Petition and Second Motion Petition under Section 13-B Hindu Marriage Act.

5.4 Respondent no. 2 confirms that she has already received a sum of Rs 7,90,000/-; and has received the balance amount of Rs. 3,50,000/- today by way of Demand Draft dated 02.05.2022 bearing no. 524494 drawn on ICICI Bank, Preet Vihar, New Delhi.

6.0 Respondent no. 2 submits that she has no objection to quashing of the FIR in question.

7.0 Learned Prosecutor submits that in view of the parties having amicably resolved all the disputes and differences, State also has no CRL.M.C. 2916/2022 page 2 of 3 objection to allowing of this petition and quashing of the aforesaid FIR. 7.0 In view of the above facts and circumstances, continuation of criminal proceedings will be an exercise in futility. Rather, the quashing of FIR would further the ends of justice, by giving quietus to the matter. 8.0 Thus, FIR No.0039/2020 dated 16.09.2020 under Sections 498A/406/34 Indian Penal Code, 1860, PS Vijay Vihar, Delhi and all consequential proceedings are hereby quashed. 9.0 The present petition stands disposed of accordingly. 10.0 Pending applications, if any, stand closed POONAM A. BAMBA, J JULY 4, 2022/g.joshi Click here to check corrigendum, if any CRL.M.C. 2916/2022 page 3 of 3